

Toledo City Council delays vote on ending Flock contracts



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Toledo City Council will wait at least two more weeks to consider a resolution calling for the city to terminate its contracts with Flock Group Inc., the company behind its controversial license plate-reading cameras.

A motion to suspend council's rules and immediately consider the resolution failed Tuesday on a 7-5 vote, two votes short of the nine needed to bypass the requirement for two readings.

The resolution, which calls on Mayor Wade Kapszukiewicz’s administration to terminate the agreements, deactivate or remove Flock equipment, and delete data collected by the company, will return to council’s agenda Nov. 4.

The delay comes as an independent audit of the city’s use and oversight of the Flock system is under way. Some council members argued that they should wait for the audit’s findings before deciding whether to support the resolution, while

others said the city should act now in response to residents' concerns about surveillance and data privacy.

Councilmen Mac Driscoll, Theresa Gadus, John Hobbs III, Brittany Jones, Nick Komives, Erin Kramer, and Sam Melden wanted to vote on the resolution immediately.

But Councilmen Theresa Morris, George Sarantou, Vanice Williams, Adam Martinez, and Cerssandra McPherson wanted to hold off voting on the resolution.

The resolution is sponsored by Mr. Komives, Ms. Jones, Ms. Gadus, Mr. Driscoll, and Ms. Kramer.

Mayor Kapszukiewicz was not present at Tuesday's meeting, but Deputy Mayor Abby Arnold sat in for him.

Awaiting audit results

Ms. McPherson said she wanted to hold off voting until council received the audit's results.

"We voted to do this, to have this audit, and now we're not going to wait to get the information so that ... I can make a good decision, a valid decision, based upon that data, whether it shows misuse of Flock, or good use of Flock, or whatever it is," Ms. McPherson said. "I would like to see that data, that audit, before I put forth my yes or no on Flock cameras."

Ms. Williams said she asked the city's auditor, John Rivalsky, to complete the audit within 30 days, but it isn't a hard deadline, since the auditor can request an extension if needed.

If Mr. Rivalsky meets that timeline, the audit could be completed by Nov. 4.

Much of council's debate has focused on the automatic license plate readers. The license plate readers photograph passing vehicles and record license plates and other identifying features in a database. Police can search the database and receive real-time alerts when a camera detects a vehicle they are seeking.

The Toledo Police Department, the city's safety director George Kral, and several council members have spoken in support of the technology, noting numerous cases where Flock technology was used to assist officers and detectives during criminal investigations.

Other council members and several residents have expressed concerns with surveillance, artificial intelligence, and how data is collected and stored.

Mr. Melden argued that council didn't need to wait for the audit's results before voting on the resolution. He also teased future legislation he is working on regarding data privacy and governance.

Mr. Martinez is also expected to introduce his own legislation that would restrict searchable terms to prohibit searches related to gender-affirming care, reproductive rights, immigration, racial bias, and more. The Toledo Police Department already has administrative policies that restrict searches along those terms, but Mr. Martinez said he wants to codify them in the Toledo Municipal Code.

Council divided on next steps

Ahead of the vote Tuesday, Mr. Martinez said that no matter what happened, the resolution was merely symbolic.

Section 30 of the Toledo Municipal Code prohibits council members from interfering directly or indirectly with the mayor's administration, so council can request termination of existing contracts but cannot require it.

Mr. Martinez said he would rather address residents' concerns through legislation, calling the resolution "theater" and "folly."

Several council members countered Mr. Martinez's comments. Ms. Gadus said "supporting residents is not theater," and Mr. Komives said the resolution was introduced in response to residents' concerns.

A few dozen residents sat in the audience Tuesday night.

"I don't want you to hear from some of my colleagues who are saying this is all folly, this is all show," Mr. Komives said to those attendees. "It's not show when you come here and voice to us what you want. It's a show if some people who are responsible for listening to you do not choose to listen to you."

Although several council members are planning to introduce additional legislation, Mr. Komives said it isn't council's responsibility to regulate the technology.

"It's Flock's problem to provide the guardrails to make sure that there's safety for our residents, that there is protection of our residents' data," he said. "And they're not doing that. They're asking us to come up with solutions."

After the meeting, Mr. Martinez said he didn’t mean any disrespect by his comments, but said he called the resolution “folly” because “it didn’t do anything.”

In addition to the Flock resolution, city council also decided to hold off voting on an ordinance that would reallocate $713,106 from funding received through the American Rescue Plan Act. That ordinance will also be on the Nov. 4 agenda.

At the conclusion of the meeting, Ms. Williams acknowledged the difficult decisions council is tasked with making and emphasized respect.

“I just want to say thank you to my colleagues,” she said. “You guys are always able to have a good conversation, and we’ll get through the hard times. I just want us to stay respectful of each other.”

Council will meet again Oct. 27 to review the agenda for its Nov. 4 meeting.

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